

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

JOINT MOTION TO EXTEND DEADLINES

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. ("Complainant" or "BBBY"), and Respondent BAL Container Line Co., Limited ("Respondent" or "BAL" and, collectively with BBBY, the "Parties"), by their respective undersigned counsel, hereby jointly submit this Joint Motion to Extend Deadlines ("Motion") respectfully requesting an extension of the remaining deadlines set forth in the Presiding Officer's Scheduling Order, as detailed herein.

I. THE CURRENT SCHEDULE

On February 25, 2025, the Presiding Officer entered the Scheduling Order, which includes deadlines affecting this Motion as follows:

May 31, 2025	Substantial completion of productions of documents and ESI in response to initial RFPs.
July 15, 2025	Complete depositions of fact witnesses.
August 7, 2025	Last day to serve interrogatories, requests for admission, and RFPs. Disclosure of initial expert reports, if any.
August 28, 2025	Disclosure of rebuttal expert reports, if any.

September 19, 2025	Complete expert depositions. Close of all discovery.
October 24, 2025	Complainant's initial brief, proposed findings of fact, and appendix.
November 21, 2025	Respondent's opposition brief, proposed finding of fact, and appendix.
December 19, 2025	Complainant's reply brief and responses to Respondent's proposed findings of fact.

II. GOOD CAUSE EXISTS TO EXTEND THE CURRENT DEADLINES

1. Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." The Parties are working diligently and collaboratively to complete their obligations, but respectfully request additional time for completion. Good cause exists for this extension.

2. Counsel for BAL intends to produce documents responsive to BBBY's RFPs by May 23, 2025. Counsel for BBBY intends to produce documents responsive to BAL's RFPs starting the week of May 26, 2025. Though the Parties endeavor to complete production prior to the current May 31, 2025 deadline, BBBY's Motion to Compel Production remains pending before the Presiding Officer. The Parties expect resolution of this motion to significantly impact BAL's production, and accordingly, whether its production in response to initial RFPs is substantially complete.

3. The Parties further anticipate that their current timeline for document production and resolution of BBBY's Motion to Compel Production will preclude their ability to fully review all documents needed to schedule and complete fact witness depositions by the current

July 15, 2025 deadline. The Parties each intend to depose multiple party and non-party fact witnesses and counsel for BAL will be unavailable June 13, 2025 through July 1, 2025 due to pre-planned vacation.

4. Counsel for BAL is also defending a multi-plaintiff trial scheduled to begin December 8, 2025. Counsel anticipates this trial will require extensive time and effort and will interfere with BAL's ability to meaningfully respond to BBY's initial brief by the Scheduling Order's current November 21, 2025 deadline.

5. Pursuant to 46 C.F.R. Section 502.71, the Parties have met and conferred via email with respect to these matters. The Parties agree that an extension of the remaining deadlines is necessary and reasonable to allow the Parties a fair opportunity to review all documents, prepare for and take depositions of each other's fact witnesses, assess the need for additional discovery, and to complete ultimate briefing. The Parties jointly request the following amended schedule:

July 15, 2025	Substantial completion of productions of documents and ESI in response to initial RFPs.
August 31, 2025	Complete depositions of fact witnesses.
September 30, 2025	Last day to serve interrogatories, requests for admission, and RFPs. Disclosure of initial expert reports, if any.
November 21, 2025	Disclosure of rebuttal expert reports, if any.
December 30, 2025	Complete expert depositions. Close of all discovery.
January 30, 2026	Complainant's initial brief, proposed findings of fact, and appendix.
February 27, 2026	Respondent's opposition brief, proposed finding of fact, and appendix.

March 27, 2026

Complainant's reply brief and responses to Respondent's proposed findings of fact.

6. WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: May 20, 2025

Respectfully submitted,

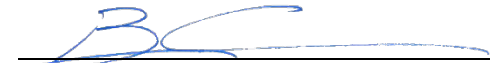
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/s/ J. Zachary Morris

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